

25STCV11038 25STCV11038

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-09-22

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Case Number: 25STCV11038 Hearing Date: September 22, 2026 Dept: 224

Maxwell Philip Kagan v. Kevin Chang

TENTATIVE RULING

The motion to quash is DENIED. The alternative request to modify is GRANTED IN PART, and the Court MODIFIES the three July 9, 2026 subpoenas as set forth below.

The request for sanctions is DENIED.

Introduction

On April 15, 2025, Plaintiff filed this action arising from an automobile collision that occurred on February 3, 2024. The Complaint alleges motor vehicle negligence and general negligence.

On June 4, 2026, Defendant served subpoenas on three Kaiser Permanente custodians of records.

On August 5, 2026, Plaintiff filed the instant Motion to Quash.

On September 2, 2026, Defendant Kevin Chang filed an opposition.

On September 14, 2026, Plaintiff filed a reply.

Legal Standard

CCP section 1987.1 states that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1(a).) "In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Id.) Subdivision (b) provides that a party may make a motion pursuant to subdivision (a). (Id., § 1987.1(b).)

California Rules of Court, rule 3.1345 provides that "[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion . . . To compel or to quash the production of documents or tangible things at a deposition[.]" (Cal. Rules of Court, rule 3.1345(a)(5).)

Discussion

Scope of the Requests

The three subpoenas at issue were all issued July 9, 2026. Item 3 of each directs the custodian to Attachment 3 and states that the records to be produced pertain to Plaintiff "from 02/03/2014 to present."

The subpoenas request the following categories of documents:

- All documents and records of whatever character, and all reproductions, including reports, records, ledgers, notes in written or electronic form, charts, correspondence and communications in written or electronic form, letters, handwritten notes, diaries, contracts, agreements, brochures, maps, diagrams, and photographs;
- All video, radiological examinations and imaging studies, scans, myelograms, ultrasounds, films, MRIs and CTs, statistical charts, illustrations, publications, and mechanical, electronic, or photographic transcriptions;
- All invoices, invoice receipts, books of account, bills, assignments of bills, invoices and accounts receivable, liens, payments, loan and lending agreements, cash advance documents, fee schedules, third-party lien holders, factoring companies, purchasers of accounts receivable, financing companies, and documents evidencing the negotiation of medical charges;
- All treatment authorizations, diagnosis and prognosis records, informed consent and pain diagrams, admission sheets, hospital charts, and emergency room records;
- All communications from any of the patient's other health care providers who have treated or are treating the patient;
- All operative and anesthesia log notes, vitals monitoring, supply records, patient sign-in sheets, progress reports and notes, lab reports, physicians' charts, nurses' charts, and records of any other medical personnel that refer, relate, or otherwise pertain to the examination, diagnosis, treatment, and care of Plaintiff.

Attachment 3 then supplies three qualifiers. Under "TIMEFRAME," it states: any and all records for the past ten years. Under "Treated at," it lists six Kaiser facilities in Panorama City, North Hollywood, and Woodland Hills. And under a heading reading "BODY AREA LIMITATION," it asks the custodian to provide a breakdown of films and studies reflecting body parts, dates taken, number of films or studies, and associated cost, for approval prior to production.

The Subpoenas Are Limited in Time

Plaintiff's Motion describes the subpoenas as "overbroad, unlimited in subject matter and time." As to time, the record does not support that characterization.

Item 3 of each subpoena limits production to records "from 02/03/2014 to present." The collision occurred February 3, 2024. The subpoenas therefore reach back ten years and no further. Attachment 3 states the same limitation in narrative form.

That limitation is the one Plaintiff himself requested. His counsel's July 24, 2026 meet-and-confer letter asked that the subpoenas be "limited to records generated within 10 years of the subject incident." His separate statement describes the subpoenas as requesting "broad ten-year medical records." And his Motion asks this Court to permit production "only of records dated February 3, 2014 through the present."

The Court finds that the subpoenas are limited in time, that the ten-year range is the range Plaintiff proposed, and that no further temporal limitation is warranted.

Relevance

For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.) Admissibility is not the test, and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. (*Id.*) These rules are applied liberally in favor of discovery and, contrary to popular belief, fishing expeditions are permissible in some cases. (*Id.*)

The conditions Plaintiff has placed at issue are head pain and traumatic brain injury, neck pain, cervical spine pain, lumbar spine pain, right wrist pain, anxiety, and depression. By denying Request for Admission No. 4, Plaintiff affirmatively asserts a claim for psychological and emotional injury. Records concerning those conditions are relevant, and Plaintiff does not contend otherwise.

Privacy Objections

Medical records fall within the right of privacy protected by article I, section 1 of the California Constitution. (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198.) In ruling on a privacy objection in the context of discovery, the party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) If the Court reaches the fourth step, it balances the competing considerations: the party seeking information may raise whatever legitimate and important countervailing interests disclosure may serve, and the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. (*Id.*) Courts may not require the party seeking discovery to demonstrate a "compelling need" simply because discovery of facially private information is sought. (*Id.* at pp. 556-557.)

Plaintiff satisfies the threshold showing as to records outside the conditions he has tendered. He has a legally protected privacy interest in his medical records.

However, balancing the competing interests, the Court finds that disclosure is warranted as to the conditions Plaintiff has placed in controversy and matters bearing on their causation, aggravation, and apportionment. A plaintiff who seeks recovery for physical and mental injuries places his condition in controversy and waives the privilege and the privacy interest as to the conditions he has tendered. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 862-864; *Vinson*, supra, 43 Cal.3d at p. 839.) That waiver, however, is measured by the injuries the patient-litigant has brought before the court, and does not expose his entire medical history. (*Britt*, supra, 20 Cal.3d at pp. 862-864; *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014-1017.)

Plaintiff's Proposed Limitation

Plaintiff's separate statement proposes that the subpoenas be rewritten to seek "[o]nly those records pertaining to" the listed body parts, together with "all charges/billings made therefore" and only those films and studies "taken during the course of

treatment to the aforementioned body parts only."

The Court declines to impose that limitation.

The Court finds that a condition-based limitation is not practicable. As set forth by Defendants, determining which progress notes concern the lumbar spine rather than another complaint documented at the same visit, and which charges are attributable to a given body part, requires clinical judgment a records custodian is not positioned to exercise. An order directing the custodian to make those determinations would not yield a narrower production so much as an unreliable one.

That the condition-based limitation is unavailable does not mean that no limitation is available. Kaiser identified three it could apply: date range, department, and provider.

Accordingly, the Court is inclined to modify the subpoenas as follows:

1. Within twenty (20) days of this order, Defendants shall serve amended subpoenas that, in addition to the existing date and facility limitations, limit production by Kaiser department and, where applicable, by provider. The amended subpoenas shall identify the departments from which records are sought, or alternatively the departments from which records are excluded, in terms the custodian can apply without review of record content.
2. Within twenty (20) days thereafter, Plaintiff shall serve responses to the subpoenas.
3. The February 3, 2014 to present date range stated in each subpoena shall remain unchanged.

Sanctions

Pursuant to Code of Civ. Proc. section 1987.2, subd. (a), the court may award sanctions "if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive."

Here, because the Court is only inclined to modify the subpoena rather than quash it, the Court cannot say that Plaintiff has opposed the motion without substantial justification. The request for sanctions is DENIED.

Conclusion

The motion to quash is DENIED. The alternative request to modify is GRANTED IN PART. The Court hereby MODIFIES the subpoena to seek documents as follows:

1. Within twenty (20) days of this order, Defendants shall serve amended subpoenas that, in addition to the existing date and facility limitations, limit production by Kaiser department and, where applicable, by provider. The amended subpoenas shall identify the departments from which records are sought, or alternatively the departments from which records are excluded, in terms the custodian can apply without review of record content.
2. Within twenty (20) days thereafter, Plaintiff shall serve responses to the subpoenas.
3. The February 3, 2014 to present date range stated in Item 3 of each subpoena shall remain unchanged.

The request for sanctions is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.